



Document
CITY OF HAVERHILL
In Municipal Council

SEP 18 10 43 AM '08
HAVERHILL

Ordered:

MUNICIPAL ORDINANCE

CHAPTER 222

**AN ORDINANCE RELATING TO AMENDMENT TO CHAPTER 222 OF THE
HAVERHILL CITY ORDINANCES**

BE IT ORDAINED by the City Council of the City of Haverhill Chapter 222 – STREETS AND SIDEWALKS, of the Code of the City of Haverhill, as amended, being and is hereby further amended as follows:

Article XI Recreational Motorized Vehicles

§ 222-62 Definitions.

As used in this article, the following terms shall have the meanings indicated:

RECREATIONAL MOTORIZED VEHICLES

Recreational motorized vehicles are described as the following: motorized scooter, unregistered, two wheels, with handle grips, powered by a gasoline two-stroke or four-stroke engine or motorized bicycles, or class 1 or class 2 electric bicycles, all. A motorized bicycle or motorcycle, as defined in M.G.L. c. 90, § 1, is not a motorized scooter. Electric scooters, electric unicycles, electric skateboards, any other electrically powered personal transportation device not otherwise regulated as a motor vehicle under the General Laws.

§ 222-63 Operating restrictions.

It shall be unlawful for any person to operate or permit to operate the defined motorized scooter recreational motorized vehicles within the City of Haverhill under any of the following circumstances:

- A. On public sidewalks.
- B. On public and private roadways by a person not possessing a valid driver's license or learner's permit bike paths, bikeways or natural surface trails.
- C. In public parks and public conservation and recreational areas.
- D. On public playgrounds or school property.
- E. On private property without the prior written consent of the owner or occupant of said property. No written consent shall be required for operation of any recreational motorized scooter vehicle upon the property of any private club or other organization that permits the use of similar recreational vehicles by the club members.
- F. In such a manner as to create loud or unnecessary noise as to unreasonably disturb or interfere with persons in the peaceful and quiet enjoyment of their property. To this end, no

person shall operate a scooter before the hour of 9:00 a.m. and after the hour of 7:00 p.m.
person shall operate a motorized scooter upon any way at any time after sunset or before sunrise.

G. To have a second rider on the same scooter.

H. Failing to wear protective headgear conforming to Registry of Motor Vehicles standards and/or noncompliance with the helmet requirements of MGL c. 85, § 11B 1/2, as may be amended from time to time.

I. Children age 12 and under shall not be allowed to drive motorized scooters. Recreational motorized vehicles, excluding electric bicycles, shall not be operated on any Way, as defined by M.G.L. Chapter 90, Section 1, by a person under sixteen years of age, nor a person not possessing a valid driver's license or learner's permit, nor shall any operator permit any other person to ride as a passenger, and shall not operate at a speed in excess of the limit established by M.G.L. c. 90.

§ 222-64 Legal operation to conform with traffic regulations.

Any person legally entitled to operate a recreational motorized vehicle, as set forth herein, must conform with all traffic laws and regulations of the Commonwealth.

§ 222-65 The parent or guardian of a person under 18 years of age shall not authorize or knowingly permit that person to violate this ordinance. A violation by a person under 18 years of age shall not affect any civil right or liability nor shall the violation be a criminal offense.

§ 222-665 Violations and penalties.

1. Any violation of said article shall be subject to a fine of \$250 for the first offense and no more than a fine of \$50 for subsequent offenses. Ticketing procedures for traffic violations shall be issued in accordance with M.G.L. c. 90C. All fines collected by a city or town pursuant to Section 11E of M.G.L. c. 85 shall be used by the City for the development and implementation of bicycle safety programs.
2. If the offender is under 16 years of age, the officer may give notice to the parent or guardian of the offender and may immediately seize and impound any Recreational Motorized Vehicle where the juvenile offender:
 - A. Fails to wear a properly fitted helmet as required by Massachusetts law and this ordinance.
 - B. Fails to obey any traffic control device, sign, signal, crosswalk law, or other rule of the road.
 - C. Operates the device recklessly, negligently, or in a manner that endangers any person or property.
 - D. Operates the device on a sidewalk, recreational path, park, school property, conservation area, or other location where operation is prohibited.
 - E. Fails to stop upon the lawful order of a police officer.
 - F. Participates in racing, speed contests, stunt riding, wheelies in traffic, or similar hazardous conduct.
 - G. Operates a modified device that exceeds manufacturer specifications or lawful speed limitations.

H. Operates the device during the commission of any criminal offense or municipal ordinance violation.

3. A seized Recreational Motorized Vehicle shall not be released to the juvenile operator. Release shall be made only to a parent, legal guardian, or lawful owner, other than the juvenile, upon:

1. Proof of ownership;
2. Proof of the juvenile's identity;
3. Payment of all applicable fines and impoundment fees; and
4. A written acknowledgment of receipt and notice of future penalties.

4. In addition to the Penalties set forth in section 222-66.1 above, as to juvenile offenders:

1. First Violation: Device may be impounded for up to seven (7) days.
2. Second Violation within twelve (12) months: Device may be impounded for up to thirty (30) days.
3. Third or Subsequent Violation within twelve (12) months: Device may be impounded for up to ninety (90) days.